

HOUSE No. 2566

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to mobile amusement equipment restraints.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/17/2025</i>
<i>Karen Janko</i>		<i>1/17/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>1/13/2026</i>

HOUSE No. 2566

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 2566) of James Arciero and others relative to mobile amusement equipment restraints. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3896 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to mobile amusement equipment restraints.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 205A of chapter 140 of the General Laws is hereby amended by
2 inserting after the words “this section”, in line 1, as appearing in the 2020 Official Edition, the
3 following words:- and section 205B.

4 SECTION 2. Said chapter 140 is hereby further amended by inserting after section 205A
5 the following section:-

6 Section 205B. (a) For the purposes of this section, “carnival” shall mean a mobile
7 enterprise principally devoted to offering amusement or entertainment to the public by means of
8 portable amusement devices or temporary structures in any number or combination, whether or
9 not associated with other structures or forms of public attraction.

10 (b) To prevent injury in the event of a passenger losing consciousness or physical
11 dexterity during the operation of an amusement device, carnivals shall not operate any
12 amusement device that carries passengers in an enclosed pod, cabin, compartment or other
13 enclosed passenger area without having a passenger safety restraint system that includes seat
14 belts.

15 (c) Any violation of this section shall be punishable by a fine of not more than \$1,000 or
16 by imprisonment for not more than 1 year, or both